

22STCV21911 22STCV21911

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 22STCV21911 Hearing Date: August 24, 2026 Dept: 408

1. Defendant Maxwell

Chang's Motion to Trifurcate is GRANTED.

2. Defendant Southern

California Permanente Medical Group's Motion to Bifurcate is DENIED.

3. Defendant Southern

California Permanente Medical Group's Motion for Leave to File Second Motion for Summary Judgment is DENIED.

I.

BACKGROUND

On July 7, 2022, Plaintiffs Christine Kang, individually and as Administrator for the Estate of Lisa Sakamoto, and Yung Soo Kang ("Plaintiffs") filed a complaint against Defendant Maxwell Cheng ("Cheng") alleging causes of action for:

1.

Negligence;

2.

Continuation
of Decedent's Causes of Action (Survival Action); and

3.

Wrongful

Death.

On

August 10, 2022, Cheng filed an answer to Plaintiffs' complaint.

On

January 10, 2024, Plaintiffs filed an Amendment to the Complaint naming Doe 1 as Raymon Paul Evangelista Aranieto ("Aranieto").

On

January 24, 2024, the court denied Cheng's Motion for Summary Judgment, or in the alternative, to Enforce Settlement.

On

April 2, 2024, pursuant to Plaintiffs' request, the court dismissed Aranieto without prejudice.

On

April 18, 2024, Plaintiffs filed Amendments to the Complaint naming Does 2 through 8 as Kaiser Foundation Health Plan, Inc., Kaiser Foundation Hospitals, the Permanente Medical Group, Inc., Kaiser Permanente Baldwin Hills Crenshaw Medical Offices, Kaiser Permanente West Los Angeles, Vision Essentials Baldwin Hills, and Vision Essentials West Los Angeles (collectively "Doe Defendants"), respectively.

On

May 31, 2024, the court denied Cheng's Motion to Bifurcate Issues of Liability and Damages at Trial without prejudice.

On

October 20, 2024, Plaintiffs filed a First Amended Complaint ("FAC").

On

November 4, 2024, Cheng filed an answer to Plaintiffs' FAC.

On

November 7, 2024, Doe Defendants filed an answer to Plaintiffs' FAC.

On

January 10, 2025, Plaintiffs filed an Amendment to the Complaint naming Doe 9 as Southern California Permanente Medical Group ("SCPMG").

On

February 10, 2025, SCPMG filed an answer to Plaintiffs' FAC.

On

November 13, 2025, pursuant to a stipulation, Doe Defendants were dismissed without prejudice.

On

January 29, 2026, the court denied SCPMG's Motion for Summary Judgment.

On March 3, 2026, the court granted

Cheng's Motion

for Summary Judgment.

On

May 22, 2025, SCPMG filed this Motion to Bifurcate Issue of Liability. On July 14, 2026, Plaintiffs filed an opposition. On July 20, 2026, SCPMG filed a reply.

On

May 29, 2026, Cheng filed this Motion to Trifurcate Issues of Settlement, Liability, and Damages. On July 14, 2026, Plaintiffs filed an opposition. On August 17, 2026, Cheng filed a reply.

On

June 15, 2026, SCPMG filed this Motion for Leave to File Second Motion for Summary Judgment. On August 11, 2026, Plaintiff filed an opposition. On August 17, 2026, SCPMG filed a reply.

II.

MOTION TO TRIFURCATE

A.

Legal Standard

Code of Civil Procedure section 598 provides that "[t]he court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order... that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof

in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5." (Code Civ. Proc., § 598.) The objective of Code of Civil Procedure section 598 "is avoidance of the waste of time and money caused by the unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff." (Horton v. Jones (1972) 26 Cal.App.3d 952, 955.)

Code of Civil Procedure section 1048 allows the court to bifurcate issues "in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy." (Code Civ. Proc. § 1048(b); see also Code Civ. Proc. § 128 [court's inherent authority to fairly and efficiently administer judicial proceedings].) A court has discretion to order separate trials of issues and determine the order in which those issues are to be decided. (Huff v. Securitas Security Services USA, Inc. (2018) 23 Cal.App.5th 745, 762.) The trial court's decision will not be overturned in absence of an abuse of discretion. (Ibid.)

B.

Discussion

Cheng moves to trifurcate trial into three phases dealing with (1) whether a policy limits settlement demand is enforceable; (2) liability for the accident; and (3) Plaintiffs' damages. (Motion, at p. 4.) Cheng contends that the court previously denied his Motion for Summary Judgment which argued that Cheng accepted Plaintiffs' policy limits demand thereby creating an enforceable settlement agreement as triable issues exist as to whether the policy limit offer was valid and enforceable. (Id., at pp. 6-8.) Cheng argues that trying the issues of settlement first would save time and resources as the jury may find that Plaintiffs did expressly consent to settle, creating a binding and enforceable agreement between the parties eliminating the need to consider liability and damages. (Id., at p. 4.) Cheng also argues that trifurcation would prevent undue prejudice to Defendants as presenting evidence of the settlement would require the jury to consider settlement and insurance, which are inadmissible topics as evidence of liability. (Id., at p. 8.)

In opposition,

Plaintiffs argue that trifurcation or bifurcation is improper as Defendants seek to re-litigate issues that this court has already determined must be presented before a jury for determination. (Opp., at pp. 8-9.) Plaintiffs also argue that trifurcation would lead to a waste of judicial resources as the issues to be

determined are intertwined. (Ibid.) Plaintiffs further argues that trifurcation does not address any potential prejudice to Defendants and instead is prejudicial to Plaintiffs. (Ibid.)

The court finds that trifurcation is warranted. Judicial economy and efficiency will be better served by trying the issues presented in three separate stages as each may independently decide Plaintiffs' claims. The court also notes that the denial of Defendants' Motion for Summary Judgment does not preempt Cheng from seeking trifurcation.

Accordingly, the motion is granted.

III. MOTION TO BIFURCATE

A. Legal Standard

See Section II(A).

B. Discussion

SCPMG moves to bifurcate the issue of vicarious liability to determine (1) whether Cheng was acting in the course and scope of employment; and, if necessary, (2) damages. (Motion, at p. 3.) SCPMG argues that bifurcation will prevent jury confusion, avoid undue prejudice, and provide greater judicial efficiency. (Id., at pp. 5-8.)

The court does not find that bifurcation solely as to the issue of vicarious liability would promote the interests of justice, convenience to the witnesses, and judicial economy. The issue of vicarious liability can be effectively determined within the liability and damages stage of the trifurcated trial.

Accordingly, the motion is denied.

IV.

MOTION FOR LEAVE TO FILE SECOND MOTION FOR
SUMMARY JUDGMENT

A.

Legal Standard

“A party shall not bring more than one motion for summary judgment against an adverse party to the action or proceeding. This limitation does not apply to motions for summary adjudication.” (Code of Civ. Proc., § 437c, subd. (a)(4).) However, “notwithstanding any other provision of this section, on motion or application of any party and a showing of good cause, the court may grant leave for the moving party to bring an additional motion for summary judgment.” (Code of Civ. Proc., § 437c, subd. (a)(5).)

B.

Discussion

SCPMG seeks leave to file a second motion for summary judgment arguing that the second motion presents a dispositive issue the court has not previously addressed as it was not raised in the prior motion, that permitting the second motion serves the interest of justice and judicial economy, and that newly available evidence supports the finding of good cause to grant leave. (Motion, at pp. 7-10.) SCPMG contends that the second motion would argue that vicarious liability cannot exist for an employee's purely personal activity as Cheng was transporting his children to preschool at the time of the accident. (Id., at pp. 7-8.) In support, SCPMG provides that, on May 22, 2026, eyewitness Byron Quinteros (“Quinteros”) testified that he saw Cheng's two children in the backseat of Cheng's vehicle after the accident and Quinteros also observed a police officer approach Cheng to ask whether he could call someone to pick up the children while the police investigation continued. (Id., at p. 8.) SCPMG contends this testimony corroborates Cheng's assertion that he was not on his way to work at the time of the accident but was instead on his way to drop his children off at preschool. (Ibid.)

The court notes

that the previous ruling on SCPMG's motion for summary

judgment found that SCPMG provided sufficient evidence to show that Cheng was headed to his children's daycare and then to work at the time of the incident. (Minute Order, dated January 29, 2026, at p. 4.) New facts must not have been discoverable at the time of the prior motion. (Forrest v. Dept. Of Corps. (2007) 150 Cal.App.4th 183, 202.) There is no indication that the testimony of Quinteros provides new facts or was not discoverable at the time of the prior motions for SCPMG to present its purely personal activity theory. Whether SCPMG seeks to present a new defense theory based on the same facts previously presented to this court, it may seek to do so at trial.

Accordingly, the motion is denied.

V.

CONCLUSION

1.

Defendant Maxwell Chang's Motion to Trifurcate is GRANTED.

2.

Defendant Southern

California Permanente Medical Group's Motion to Bifurcate is DENIED.

3.

Defendant Southern

California Permanente Medical Group's Motion for Leave to File Second Motion for Summary Judgment is DENIED.